

29 June 2026

Freedom of Information Officer
Shire of Boyup Brook
PO Box 41
Boyup Brook WA 6244
shire@boyupbrook.wa.gov.au

RE: FREEDOM OF INFORMATION REQUEST

Freedom of Information Act 1992 (WA)

Flax Mill Caravan Park Boyup Brook — monthly reports, Guest Stay Policy, vacation notices, and licensing

I, _____ [full name], of
_____ [address], request access to the
documents listed below under the Freedom of Information Act 1992 (WA).

Context:

Notices headed "Notice of Stay Limit Enforcement & Required Vacation of Site" have been issued by CMCA at Flax Mill Boyup Brook Caravan Park, stated to be "in accordance with the Guest Stay Policy (Ref: CMCA-GSP-FMB-001, Version 1.0, effective 28 May 2026)," requiring guests who have resided at the park for more than three months to vacate their sites no later than 19 June 2026. The Shire operates the park itself under section 15 of the Caravan Parks and Camping Grounds Act 1995 and, by s. 15(1), is bound by that Act and its Regulations "as if it were the licence holder." At least one affected resident has commenced proceedings in the State Administrative Tribunal. The existence of that proceeding does not remove these documents from the operation of the FOI Act.

The guests affected are, on CMCA's own monthly reports to Council, workers in the shearing and health industries and on local infrastructure, road and Water Corporation projects, together with people unable to find affordable housing in the district. The shortage of such housing is recognised across the Shire's own strategic documents — the Strategic Community Plan 2021–2031 (which commits the Shire to renew its affordable housing stock and to "increase staff accommodation"), the Local Planning Strategy (April 2024, which commits to developing Shire and Crown land "to facilitate the creation of affordable housing"), the Local Planning Scheme (Town Planning Scheme No. 2, which provides for both "Caravan Park" and "Workforce

accommodation" as land uses), and the Workforce Plan 2026–2030 (which records housing availability as a "structural constraint across regional Western Australia" and an extreme recruitment risk). These documents are referred to as context and are not themselves requested under this application.

I. REQUESTING SOURCE MATERIAL BEHIND THE MONTHLY CARAVAN PARK REPORTS TO COUNCIL

The monthly caretaker reports state on the public record that the assessment and monitoring of long-stay occupancy was occurring jointly between CMCA and the Shire. The relevant statements, which indicate that the records sought in item 4 below exist, are:

- August 2025 report (OCM 25 September 2025, Item 9.4.6) — first reference to patrons "supporting the shearing industry and health industry who are seeking longer term accommodation due to the lack of available housing in Boyup Brook."
- January 2026 report (OCM 26 February 2026, Item 10.4.3) — "CMCA management have been working with the Shire to assess the current situation and options for managing this into the future."
- February 2026 report (OCM 26 March 2026, Item 10.4.1) — "CMCA management and the Park Custodian, in conjunction with the Shire, will continue to monitor long-term stays ... until the statutory review ... is completed."
- March 2026 report (OCM 30 April 2026, Item 10.4.1) — "This is being actively monitored."
- April 2026 report (OCM 28 May 2026, Item 10.4.1) — "This is being actively monitored," and "Both parties have also considered the potential implementation of stricter short stay limits."

For the period 1 July 2025 to 31 May 2026, I request:

1. All reports and their attachments provided by CMCA (Campervan and Motorhome Club of Australia Limited), or its park management or caretakers, to the Shire for the purpose of the monthly Flax Mill Caravan Park reports presented to Council — including the monthly caretaker reports and any management or operations reports — together with the emails or other communications (paper or electronic) by which they were delivered.

2. Any recommendations or commentary provided by CMCA regarding long-stay occupancy, housing shortages, workforce accommodation, stay limits, tourism impacts, or the management of residents.
3. Any documents provided by CMCA that were used in preparing the officer report for Item 10.4.2 (Guest Stay Policy).
4. All records evidencing the assessment, monitoring, and consideration of "options" that the monthly reports state were being carried out jointly by CMCA and the Shire — including any assessment notes, options papers, file notes, registers, or correspondence between CMCA and the Shire by which long-stay occupancy was tracked or evaluated over the period 1 July 2025 to 31 May 2026.

II. DEVELOPMENT OF THE GUEST STAY POLICY, CMCA CONSULTATION, AND CMCA'S AUTHORITY TO ACT

Under the management agreement provided to me at FOI ICR15912 (30 January 2023), CMCA is engaged as "Manager" to use the premises **"only for the purpose of a caravan park ... and for no other purpose whatsoever,"** and covenants to comply with all applicable statute and subordinate legislation. I therefore request:

5. All drafts, versions, and revisions of the CMCA Parks Guest Stay Policy (Ref CMCA-GSP-FMB-001), and of any predecessor or related "Short Term Stay Policy" for the Flax Mill Caravan Park, together with any correspondence transmitting those drafts between CMCA and the Shire.
6. All documents prepared, transmitted, or commented upon by the CMCA Manager of Business & Development referred to in the Consultation section of the officer report for Item 10.4.2, OCM May 2026, in relation to the Guest Stay Policy or the management of long-stay tenants at the Flax Mill Caravan Park.
7. Any document by which the Shire authorised or delegated to CMCA, or to the Park Custodian, the power to set maximum stay limits, to determine occupancy eligibility, or to require occupants to vacate the park.

III. IMPLEMENTATION OF THE VACATION NOTICES

8. The instruction or authorisation to issue the vacation notices.
9. The template or master notice ("Notice of Stay Limit Enforcement & Required Vacation of Site").
10. Any covering email or written direction to park management or caretakers to serve the notices.
11. Any list or schedule identifying which residents or sites would receive a notice.
12. Any criteria used to determine who was an "affected guest" required to vacate.
13. Any guidance provided to park management or caretakers about how to answer residents' questions about the notices.
14. Any internal communications about the effective date of the policy and the 21-day transition period.

IV. LEGAL AUTHORITY FOR THE ESSENTIAL WORKER EXEMPTION REQUIREMENT

15. Any document identifying the provision — section or regulation of the Caravan Parks and Camping Grounds Act 1995, the Residential Parks (Long-stay Tenants) Act 2006, their Regulations, or any other written law — relied on by the Shire or CMCA as authority to require a resident to apply for an "Essential Worker" exemption in order to remain at the park.

V. ENGAGEMENT OF LEGAL SERVICES

The following items seek the fact and terms of engagement and the costs incurred — administrative records of the Shire — and **not the content of any legal advice**. If any document within these items is claimed to be exempt under Schedule 1 clause 7 (legal professional privilege), I ask that the Shire confirm the document exists and issue a

notice of decision under s. 30 giving reasons and identifying the exemption relied on, rather than declining to confirm existence. In relation to the Flax Mill Caravan Park stay 7limits, the Guest Stay Policy, the vacation notices, or any related tribunal or court proceeding:

16. Any engagement letter, retainer, or instruction to act given to a legal practitioner or law firm.

17. Any record of the scope of that engagement.

18. Any invoice, fee estimate, or payment record relating to that engagement.

VI. THE SHIRE'S LEGAL AUTHORITY TO OPERATE THE PARK AS "SHORT STAY ONLY"

If no document exists answering item 19 or item 20, I ask that the Shire formally advise me under section 26 of the FOI Act that the document does not exist or cannot be found.

As deemed licence holder under s. 15 of the Caravan Parks and Camping Grounds Act 1995, the Shire is bound by that Act and its Regulations. I request:

19. The instrument or record by which the Shire, as the deemed licence holder, has endorsed for the Flax Mill Caravan Park the maximum number of sites and the maximum number of sites of particular types, as required of a local government by regulation 50 (Part 5 — Licensing of caravan parks and camping grounds) of the Caravan Parks and Camping Grounds Regulations 1997 — including any document classifying or distinguishing sites as short stay or long stay (noting that "long stay site" is a defined site type under regulation 3 of those Regulations).

20. Any document that identifies the legal authority relied on by the Shire to require that no long stay occupation be permitted at the park, or to limit occupation to short stay only — whether that authority is said to arise from the Caravan Parks and Camping Grounds Act 1995 or its Regulations, a condition of planning approval, a provision of Town Planning Scheme No. 2, a Council resolution, a management policy, or an occupancy agreement.

21. Any inspection or compliance records for the facility made under or for the purposes of section 21 of the Caravan Parks and Camping Grounds Act 1995.

HOW I ASK THE SHIRE TO RESPOND

- Where a document contains exempt matter, I request an edited copy with the exempt matter deleted under s. 24, rather than refusal of the whole document.
- If access to any document is refused in whole or in part, I request a notice of decision under s. 30 that gives reasons, identifies the exemption relied on, and confirms whether the document exists.
- I request a schedule listing each document located in response to this request, including its date, author, and the decision made on access.
- I request documents in electronic format where possible.

APPLICATION FEE

I understand the application fee is \$30 and will arrange payment.

CORRESPONDENCE

Please direct all correspondence regarding this request to:

_____ [full name]
_____ [postal address]
_____ [phone]
_____ [email]

Yours sincerely,

_____ [signature / name]